

Court No. - 32

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru' Its Managing Director And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Kashi Nath Pandey, J.

In respect of allegations of theft of electricity by tempering the meter, a provisional assessment was made against the petitioner. It is admitted in paragraph-13 (b) of the complaint made before the District Consumer Forum that a checking report was available with the petitioner. The petitioner admittedly did not file reply to the provisional assessment. A criminal complaint was lodged against him under Section 135.

The petitioner is now challenging the recovery of Rs. 4, 20, 288/- under the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1958 on the grounds, that no checking was made; checking report was not given to him; final assessment was not made and that in any case recovery of dues beyond two years is barred by sub section (2) of Section 56 of the Electricity Act, 2003, and Para 6.15 (b) of the Electricity Supply Code, 2005.

Prima facie, there is material on record to show that the checking report, and provisional assessment order were given to the petitioner. He was aware the reason, for which the provisional assessment was made against him as a theft case, and a complaint under Section 135 was also filed against him. Section 56 (2) is applicable to default in payment where any person neglects to pay any charge for electricity or any sum other than a charge for electricity due from him to a licensee or the generating company in respect of supply, transmission or distribution or wheeling of electricity to him. It is not applicable to theft cases. Similarly Para 6.15 (b) of the Electricity Supply Code, 2005 has to be read in the context of sub clause (1) of Section 56. It cannot be read in isolation to fix the period of limitation for two years, even in a theft case.

In this case, we are required to consider whether any final assessment was made. Even on the admission of the petitioner no reply was given in the absence of checking report.

Let Shri Rajesh Tripathi seek instructions in the matter within a week.

List on **7.10.2010**.

Order Date :- 29.9.2010
RKP

Court No. - 36

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru' Its Managing Director And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Rajesh Chandra,J.

As prayed by Sri Rajesh Tripathi, advocate, list on 8th November, 2010 in order to enable him to obtain instructions.

Order Date :- 27.10.2010

M/A.

Court No. - 36

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru' Its Managing Director And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Rajesh Chandra,J.

Passed over on the illness slip of Sri Mayank Agrawal.

Order Date :- 8.11.2010

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Court No. - 36

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru' Its Managing Director And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

Learned counsel for the petitioner has sent illness slip.

Case is passed over.

List again.

Order Date :- 3.1.2011

SB

Court No. - 37

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru' Its Managing Director And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

Counter and rejoinder affidavits filed today are taken on record.

List in the next cause list.

Order Date :- 18.1.2012

Abhishek Sri.

(Ashok Pal Singh, J.)

(Vineet Saran, J.)

Court No. - 37

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru' Its Managing Director And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

As prayed list in the next cause list.

Order Date :- 30.1.2012

Abhishek Sri.

(Ashok Pal Singh,J.)

(Vineet Saran,J.)

Court No. - 21

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru Its Managing Director And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C.,Baleswar Chaturvei,Rajesh Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

As prayed by learned counsel for the petitioner, the matter is adjourned.

List on 03.03.2023.

Order Date :- 17.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru Its Managing Director And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C.,Baleswar Chaturvei,Rajesh Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the petitioner states that he will provide complete set of pleadings to Sri Baleshwar Chaturvedi, learned counsel for the respondent within a week.

List on 15.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.3.2023

Shivangi

Court No. - 21

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru Its Managing Director And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C.,Baleswar Chaturvei,Rajesh Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the petitioner prays for adjournment.

List on 05th April, 2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru Its Managing Director And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C.,Baleswar Chaturvedi,Rajesh Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The brief holder of Sri Baleswar Chaturvedi, Advocate seeks time to complete his instructions.

List on 02.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.4.2023

Jaswant

Court No. - 21

Case :- WRIT - C No. - 59924 of 2010

Petitioner :- Joginder Singh

Respondent :- D.V.V.N. Ltd. Thru Its Managing Director And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C.,Baleswar Chaturvei,Rajesh Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

After making brief submissions, Shri Mayank Agrawal, learned counsel for the petitioner prays for withdrawal of the petition with liberty to the petitioner to challenge the order of final assessment in independent proceedings.

Shri Ashutosh Dwivedi holding brief of Shri Baleswar Chaturvedi, learned counsel for the respondent-Electricity Department has no objection to the same.

Accordingly, the petition is disposed of as withdrawn with liberty in terms of the prayer.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023

Rama Kant